

**Court No. - 4**

**Case :-** CONTEMPT APPLICATION (CIVIL) No. - 4782 of 2021

**Applicant :-** Mangalam Cold Storage And Allied And Another

**Opposite Party :-** Ram Pal Singh Yadav, Executive Engineer

**Counsel for Applicant :-** Swapnil Kumar, Sudhanshu Kumar

**Hon'ble Prakash Padia, J.**

The applicants are before this Court for a direction to initiate contempt proceeding against the opposite party for wilful disobedience of the order dated 07.12.2020 passed in Writ C No. 19791 of 2020 (Mangalam Cold Storage and Allied Industries and another Vs. State of U.P. and 3 Others), which for ready reference is quoted as under:-

*"Heard Sri Swapnil Kumar, learned counsel for the petitioners and Sri Rakesh Kumar Tripathi, Advocate holding brief of Sri Narendra Kumar Tiwari, learned counsel appearing for respondent no.2 and learned Standing Counsel on behalf of respondent Nos. 1 and 3.*

*The instant petition has been filed seeking following relief:*

*a) To quash the impugned recovery certificate dated 27.12.2019 issued by Executive Engineer/ respondent No.4 and recovery citation dated 20.01.2020 issued by respondent no.3.*

*b) To issue an order or direction to respondent no.4 to issue revised bill of the electricity consumption of the petitioner.*

*c) To issue a writ, order or direction in the nature of mandamus restraining the respondents from realizing any amount from the petitioner in pursuance to recovery citation dated 20.01.2020.*

*At the very outset, learned counsel for the petitioner has submitted that he may be given an opportunity to approach respondent no.4- Executive Engineer under Clause 6.5 of U.P. Electricity Supply Code, 2005 by means of a representation which may be considered and decided expeditiously in accordance with law.*

*Learned counsel for the respondents has no objection to it.*

*Considering the facts and circumstances of the case, without expressing any opinion on the merits of the case, the present petition is disposed of finally with liberty to the petitioners to approach respondent no.4 within two weeks from today along with the copy of fresh representation. The said respondent shall consider the representation of the petitioner and shall pass appropriate orders in accordance with law within four weeks thereafter. If the petitioner fails to approach respondent no.4 within stipulated period of time, he is not liable to get the benefit of this order.*

*With the aforesaid observation, the petition is disposed of. "*

Learned counsel for the applicants submit that a copy of the aforesaid order was submitted for compliance before the opposite party but the opposite party has wilfully not complied with the order and, thus, has committed civil contempt liable for punishment under Section 12 of the Contempt of Courts Act, 1971.

Prima facie a case of contempt has been made out. However, considering the facts and circumstances of the case, one more opportunity is afforded to the opposite party to comply with the aforesaid order of the Court within **three weeks** from the date of production of a copy of this order.

With the aforesaid observations, this application is disposed of at this stage with liberty to the applicant to move a fresh application, if the order is not complied with by the opposite party within the stipulated time as aforementioned.

The party shall file computer generated copy of such order downloaded from the official website of High Court Allahabad, self attested by the applicant along-with a self attested identity proof of the said person (preferably Aadhar Card) mentioning the mobile number to which the said Aadhar Card is linked.

The concerned Court/Authority/Official shall verify the authenticity of such computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing.

**Order Date :- 27.10.2021**

Swati